

25CV07534 JB Grant vs Ramsey Asphalt Construction Corp et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-09-21

Motion: CMC; Demurrer; Motion: Strike

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/25cv07534>

Source SHA-256: 2264fd0b572f48261df03c1b3be658389c524885567e837b4d3ad17966cb08e9

Tentative Ruling: JB Grant vs Ramsey Asphalt Construction Corp et al

Case Number

25CV07534

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 09/21/2026 - 10:00

Nature of Proceedings

CMC; Demurrer; Motion: Strike

Tentative Ruling

JB Grant v. Ramsey Asphalt Construction Corp., et al.

Case No. 25CV07534

Hearing Date: September 21, 2026

HEARING: (1) Demurrer to Complaint

(2) Motion to Strike Portions of Plaintiff's Complaint

ATTORNEYS: For Plaintiff JB Grant: Betty Johnson, Lawyers for Employee and Consumer Rights

For Defendant Ramsey Asphalt Construction Corp.: Airene Williamson, Williamson Law Office, PC

TENTATIVE RULING:

(1) The demurrer of defendant Ramsey Asphalt Construction Corp., to plaintiff's complaint is sustained in part as to the fourth cause of action only, with leave to amend. Except as herein sustained, the demurrer is otherwise overruled.

(2) The motion of defendant Ramsey Asphalt Construction Corp., to strike portions of plaintiff's complaint is granted, in part with leave to amend. The following matters are stricken from plaintiff's complaint to the extent they are directed or effective as to defendant Ramsey Asphalt Construction Corp., only: paragraphs 29 and 59 ["Thus, PLAINTIFF is entitled to punitive damages against DEFENDANT under California Civil Code Section §3294."]; paragraphs 38, 47, and 66 ["DEFENDANT's conduct warrants the assessment of punitive damages in an amount sufficient to punish DEFENDANT and deter others from engaging in similar misconduct."]; and prayer paragraph (l). The following matters are also stricken from plaintiff's complaint: prayer paragraph (a) ["overtime compensation, meal and rest period compensation, waiting time compensation"]; and prayer paragraph (d). Except as herein granted, the motion to strike is otherwise denied.

(3) Plaintiff shall file and serve their first amended complaint, if any, on or before October 5, 2026.

Background:

As alleged in the complaint of plaintiff JB Grant (Plaintiff):

Ramsey Asphalt Construction Corp. (Ramsey) employed Plaintiff as a Class A Driver/Laborer from on or about September 12, 2022, through December 23, 2023. (Complaint, ¶ 12.) Throughout Plaintiff's employment, Plaintiff's supervisor, Scott Doe (S Doe), frequently sent inappropriate images and memes depicting nudity and sexual content to a company WhatsApp group chat that included all employees, and would whistle at Plaintiff or slap him on the buttocks whenever he bent over while performing work duties. (Complaint, ¶¶ 14-15.) Plaintiff complained to supervisor "JC" about S Doe's conduct, but no action was taken to stop or correct the harassment. (Complaint, ¶ 16.)

Ramsey also failed to provide accessible restroom facilities at worksites, forcing Plaintiff and other employees to relieve themselves in the bushes or travel to nearby businesses. (Complaint, ¶ 17.) When Plaintiff reported unsafe truck conditions to S Doe, including flat tires and broken lights, S Doe nevertheless instructed Plaintiff to operate the trucks despite those safety hazards, endangering Plaintiff and the public. (Complaint, ¶ 18.)

In or around December 2023, S Doe texted Plaintiff to inform him that work was slow and that Plaintiff did not need to report to work. (Complaint, ¶ 19.) In or around April 2024, when Plaintiff texted S Doe to ask whether there was any additional work available, S Doe responded that he believed Plaintiff had obtained another job which is why S Doe had not contacted him. (Complaint, ¶ 20.) Plaintiff informed S Doe that he did not have another job. (Complaint, ¶ 20.)

Ramsey failed to reimburse Plaintiff for cell phone usage, which was necessary for communicating with supervisors and handling job-related matters. (Complaint, ¶ 22.) Plaintiff incurred approximately \$50 per month, representing about ten percent Plaintiff's monthly cell phone bill attributable to work-related use. (Complaint, ¶ 22.)

Plaintiff filed a complaint with the California Civil Rights Department (the CRD) and obtained a "Right-To-Sue" letter (the RTS Letter). (Complaint, ¶ 11.) (Note: Though the complaint alleges that a copy of the RTS Letter is attached to that pleading, the court's copy of the complaint does not include a copy of that letter.)

On December 2, 2025, Plaintiff filed a complaint against defendants Ramsey and S Doe, asserting eight causes of action: (1) wrongful termination in violation of public policy; (2) whistleblower retaliation (Lab. Code, § 1102.5 & § 98.6); (3) California Fair Employment and Housing Act (the FEHA) – harassment (Gov. Code, § 12900 et seq.); (4) failure violation – failure to provide reasonable accommodations (Gov. Code, § 12940, subd. (m), & § 12940); (5) FEHA – failure to prevent discrimination and retaliation (Gov. Code, § 12900 et seq. & § 12940, subd. (k)); (6) failure to furnish compliant wage statements (Lab. Code, § 226 & § 226.3); (7) failure to reimburse Plaintiff for expenditures made on employer’s behalf (Lab. Code, § 2802); and (8) unfair competition (Bus. & Prof. Code, § 17200 et seq.).

On June 9, 2026, Ramsey filed a demurrer to the complaint and each cause of action alleged therein, and separately filed a motion to strike portions of the complaint. Plaintiff filed an opposition to the demurrer, and separately filed an opposition to the motion to strike.

Analysis:

(1) Demurrer

“In reviewing the sufficiency of a complaint against a general demurrer, we are guided by long-settled rules. ‘We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. [Citation.] We also consider matters which may be judicially noticed.’ [Citation.] Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38 (Quelimane).)

(a) Special demurrer for uncertainty

Ramsey specially demurs to the complaint on the grounds that the pleading is inconsistent as to the gender of Plaintiff, and because the complaint refers to acts and omissions by the defendants collectively without distinguishing between Ramsey, S Doe, or any other fictitiously named defendant. (Demurrer at pp. 5-7.) The demurrer further asserts that the fourth cause of action is internally inconsistent.

A demurrer may be made on the grounds that “[t]he pleading is uncertain.” (Code Civ. Proc., § 430.10, subd. (f).) “‘[U]ncertain’ includes ambiguous and unintelligible.” (Ibid.; see also Smith v. Kern County Land Co. (1958) 51 Cal.2d 205, 209.) “A special demurrer on the ground that [a pleading] is (a) ambiguous, (b) unintelligible, or (c) uncertain is insufficient unless the demurrer points out specifically wherein the pleading is ambiguous, uncertain or unintelligible.” (Coons v. Thompson (1946) 75 Cal.App.2d 687, 690.)

The complaint includes a section titled “Factual Allegations”. Giving the complaint a reasonable interpretation, those factual allegations ostensibly give rise to each cause of action asserted in the complaint. (See, e.g., Complaint at pp. 4-5 & ¶¶ 25, 30, 39, 48, 60, 67, 70 & 73 [incorporating allegations as to each cause of action].) The demurrer does not effectively dispute that those factual allegations consistently refer to Plaintiff using a male pronoun. (See, e.g., Complaint, ¶¶ 15, 19, 20, 22.) Instead, the locations specifically pointed out in the demurrer where the uncertainties as to Plaintiff’s gender appear include paragraphs 11, 43, 46, and 65 of the complaint which are not included in the “Factual Allegations”. (Demurrer at pp. 5-6.) The paragraphs which the demurrer specifically points out refer to Plaintiff using a female pronoun, and allege that Plaintiff timely filed a complaint with the CRD; that Plaintiff’s gender was a substantial and motivating factor in the alleged adverse employment actions taken against Plaintiff; and that Plaintiff has been required to retain counsel in this matter. (Complaint, ¶¶ 11, 43, 46, & 65.)

“[T]he FEHA prohibits harassment on the basis of sex and other protected classifications.” (Fiol v. Doellstedt (1996) 50 Cal.App.4th 1318, 1324.) Relevant here, “a cause of action for sexual harassment in violation of [the FEHA] may be stated by

a member of the same sex as the harasser, whether based on the quid pro quo theory or the hostile environment theory or a hybrid of both theories.” (Mogilefsky v. Superior Court (1993) 20 Cal.App.4th 1409, 1418.) A heterosexual individual may also be subjected to sexual harassment under the FEHA where the harassment “employed attacks on” the individual’s “identity as a heterosexual .. as a tool of harassment.” (Singleton v. United States Gypsum Co. (2006) 140 Cal.App.4th 1547, 1562.)

The examples provided above are intended to be illustrative but not exhaustive. For the reasons discussed above, even if the court were to assume without deciding that the complaint is in some respects ambiguous as to Plaintiff’s gender, the demurrer fails to show why any ambiguities as to the gender of Plaintiff render the complaint so incomprehensible that Ramsey cannot reasonably respond to its allegations or understand the issues or nature of the claims alleged in the third cause of action for harassment under the FEHA notwithstanding Plaintiff’s gender. (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292; Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245 [“a plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action”].)

Furthermore, in the opposition to the demurrer, Plaintiff asserts that the inconsistent use of pronouns constitute a “scrivener’s” error. (Opp. at p. 3.) There is no information or evidence to suggest that assertion is untruthful. To the extent those ostensible errors give rise to some ambiguity as to the gender of Plaintiff, those “ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616 (Khoury).) Moreover, Ramsey presumably if not necessarily possesses knowledge of the gender of its former employee. “Nor will a demurrer for uncertainty lie where the facts are presumptively within the knowledge of the demurring parties.” (Dumm v. Pacific Valves (1956) 146 Cal.App.2d 792, 799.)

The same or similar reasoning and analysis apply as to any collective references to defendants. In regard to any inconsistencies in the title of the fourth cause of action, to the extent the factual basis for relief “states a cause of action under any theory ...”, the demurrer fails to explain why any inconsistencies prevent Ramsey from understanding the nature of the fourth cause of action or from reasonably responding to the complaint. (Quelimane, supra, 19 Cal.4th at p. 38.)

Even if the complaint in certain respects does not “present a complete picture of” Plaintiff’s gender, the conduct of each of the named defendants, or the title under which any factual basis for relief is stated, “the facts upon which [P]laintiff relies are stated with sufficient clarity. The allegations are neither uncertain, ambiguous nor unintelligible. Although the complaint should not be taken as a model of good pleading, it is sufficient as against ... the ... special demurrer[.]” (People v. Lim (1941) 18 Cal.2d 872, 883.) For these and all further reasons discussed above, the court will overrule the special demurrer of Ramsey on the grounds stated.

(b) Demurrer to the third, fourth, and fifth causes of action

The third, fourth, and fifth causes of action assert claims under the FEHA, respectively, for harassment, failure to provide reasonable accommodations, and failure to prevent discrimination and retaliation. The demurrer asserts that Plaintiff is required to plead exhaustion of administrative remedies as a prerequisite to filing a lawsuit under the FEHA, and that the allegation that Plaintiff filed a complaint with the CRD and obtained the RTS Letter, which is not attached to the complaint, is insufficient to meet that requirement.

“Under California law ‘an employee must exhaust the ... administrative remedy’ provided by the [FEHA], by filing an administrative complaint with the California Department of Fair Employment and Housing (DFEH) [citation] and obtaining the DFEH’s notice of right to sue [citation], ‘before bringing suit on a cause of action under the act or seeking the relief provided therein’ [Citations.]” (Martin v. Lockheed Missiles & Space Co. (1994) 29 Cal.App.4th 1718, 1724.)

Though the demurrer effectively concedes that the complaint alleges that Plaintiff filed a complaint with the CRD and obtained the RTS Letter, the demurrer presents no reasoned argument, supported by legal authority, explaining why a copy of that complaint or RTS Letter must be attached to the pleading. Nor is the court aware of any such authority. Instead, those allegations are, for pleading purposes, “sufficient to plead exhaustion.” (Williams v. Housing Authority of Los Angeles (2004) 121 Cal.App.4th 708, 721.)

To the extent the demurrer raises a factual question as to whether Ramsey was named in the complaint submitted by Plaintiff to the CRD, was made aware of any charges through an administrative proceeding, or participated in any such proceeding (see, e.g., *Clark v. Superior Court* (2021) 62 Cal.App.5th 289, 304-306 (Clark) [general discussion]), “[t]he hearing on demurrer may not be turned into a contested evidentiary hearing” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 114.) Further, it is not unreasonable to infer from the express allegation that Plaintiff obtained the RTS Letter, that “there was no administrative process to exhaust” (Clark, *supra*, 62 Cal.App.5th at p. 305, original italics.) For these additional reasons, the complaint sufficiently alleges that Plaintiff “exhausted [their] administrative remedies against [Ramsey] in this case.” (Ibid.)

As to the third cause of action for harassment under the FEHA, the demurrer also argues that the complaint shows only undifferentiated communications by S Doe to all employees and fails to allege that any conduct was “directed at” Plaintiff; lacks any particulars regarding the frequency of any harassment, the identity of the actors, dates, or circumstances surrounding the alleged harassment; and fails to plead a harassment claim against any individual defendant. For these reasons, the demurrer argues, the complaint fails to state facts sufficient to constitute a cause of action for harassment under the FEHA.

Under the FEHA, an “unlawful employment practice” includes where an employer harasses an employee “based on membership in a protected class” which includes the employee’s “gender”. (*Bailey v. San Francisco Dist. Attorney’s Office* (2024) 16 Cal.5th 611, 626 (Bailey); Gov. Code, § 12940, subd. (j)(1).) The third cause of action alleges that Plaintiff was subjected to “unwanted sexual and gender based harassment” which “was severe, widespread, and persistent in that [Ramsey] took adverse employment action against [Plaintiff].” (Complaint, ¶ 41.) A reasonable interpretation of the complaint shows that the “unwanted sexual and gender based harassment” includes the sending of images and memes depicting nudity and sexual content to an employee group chat by S Doe, and S Doe and other coworkers whistling at Plaintiff or slapping him on the buttocks “whenever he bent over” (Complaint, ¶¶ 14-15.)

The allegations described above are sufficient at the pleading stage to raise a reasonable inference that the conduct at issue was “sufficiently severe or pervasive to alter the conditions of [Plaintiff’s] employment and create an abusive work environment.” (Bailey, *supra*, 16 Cal.5th at p. 627.) A reasonable trier of fact could also find that the “slapping” of Plaintiff’s “buttocks” by S Doe constitutes a “physical groping of [P]laintiff”, which is “actionable conduct” for purposes of the FEHA. (*Myers v. Trendwest Resorts, Inc.* (2007) 148 Cal.App.4th 1403, 1419.) It can also be inferred from the allegation that S Doe engaged in that conduct each time Plaintiff bent over, that the conduct at issue consisted of “more than a few isolated incidents” and was not solely “aimed at persons other than” Plaintiff. (*Lyle v. Warner Brothers Television Productions* (2006) 38 Cal.4th 264, 284 (Lyle).)

It can also be inferred from the allegation that images of nudity and sexual content were sent through an employee group chat, that the conduct at issue “ ‘permeated [Plaintiff’s] direct work environment.’ [Citation.]” (Lyle, *supra*, 38 Cal.4th at p. 285.) For these and all further reasons discussed above, the court will overrule the demurrer to the third cause of action alleged in the complaint.

As to the fourth cause of action for failure to provide reasonable accommodations, the complaint alleges that, while employed by Ramsey, Plaintiff suffered from a condition that substantially limits one or more major life activities; that Ramsey was on notice of that condition; that Plaintiff had to take leave due to that condition; that Plaintiff was able to perform their essential job duties with reasonable accommodations; and that Ramsey failed to provide reasonable accommodations and to engage in an interactive process with Plaintiff and instead, engaged in retaliatory and hostile conduct towards Plaintiff. (Complaint, ¶¶ 49-53.) The demurrer asserts that the complaint fails to provide any factual foundation for those allegations.

The “FEHA places an ‘affirmative duty’ upon employers to ‘ ‘make [a] reasonable accommodation for the known disability of an employee unless doing so would produce undue hardship to the employer’s operation.’ ” [Citations.] FEHA also charges employers with a related, precursor duty to ‘engage in a timely, good faith, interactive process with the employee ... to determine effective reasonable accommodations ... in response to a request for reasonable accommodation by an employee ... with a known ... disability.’ [Citations.]

“These duties only arise when the employee’s disability is ‘known’ to the employer: Not only is this prerequisite explicitly set forth in FEHA’s statutory text [citation], but it is implicit in the very nature of the duties themselves— ‘unless there is some evidence an employer knows an employee is suffering from a disability, it is impossible for an employee to claim ... that an employer refused to accommodate the disability’ [citation] or to claim that the employer refused to engage in the interactive process [citation]. In most cases, ‘[t]he employee bears the burden of giving the employer notice of the disability,’ and that notice is what ‘triggers the employer’s burden to take “positive steps” to accommodate the employee’s limitations’ and to thereafter provide reasonable accommodations. [Citations.]” (Husband v. Target Corp. (2026) 120 Cal.App.5th 762, 775.)

To the extent the fourth cause of action arises from an alleged disability of Plaintiff, the “FEHA states a ‘physical disability’ includes, but is not limited to, ‘any physiological disease, disorder, condition, cosmetic disfigurement, or anatomical loss that does both of the following: [¶] (A) Affects one or more of the following body systems: neurological, immunological, musculoskeletal, special sense organs, respiratory, including speech organs, cardiovascular, reproductive, digestive, genitourinary, hemic and lymphatic, skin, and endocrine. [¶] (B) Limits a major life activity. For purposes of this section: [¶] ... [¶] (ii) A ... condition ... limits a major life activity if it makes the achievement of the major life activity difficult. [¶] (iii) “Major life activities” [is] broadly construed and includes physical, mental, and social activities and working.’ [Citations.]” (Brown v. Los Angeles Unified School Dist. (2021) 60 Cal.App.5th 1092, 1104 (Brown).)

Wholly absent from the complaint are any allegations showing what, if any, condition affected Plaintiff’s body systems; why that condition limited or made any major life activity difficult; or why that condition was or should have been known to Ramsey. For these and all further reasons discussed above, Plaintiff has not “adequately pleaded physical disability within the four corners of the statute.” (Brown, *supra*, 60 Cal.App.5th at p. 1104 [describing allegations sufficient to plead a disability]; see also Bagatti v. Department of Rehabilitation (2002) 97 Cal.App.4th 344, 354 [same].) Therefore, and for these reasons, the court will sustain the demurrer to the fourth cause of action on the grounds stated.

The demurrer also asserts that the fifth cause of action for failure to prevent discrimination and retaliation is derivative of the harassment and other claims under the FEHA further discussed above, and therefore “falls with them.” (Demurrer at p. 13.) As the court will overrule the demurrer to the third cause of action for harassment under the FEHA, the court will also and for the same reasons discussed above, overrule the demurrer to the fifth cause of action on the grounds stated. (Carter v. California Dept. of Veterans Affairs (2006) 38 Cal.4th 914, 925, fn. 4 [“courts have required a finding of actual discrimination or harassment under FEHA before a plaintiff may prevail”]; cf. Trujillo v. North County Transit Dist. (1998) 63 Cal.App.4th 280, 288–289 [noting that the harassment “did not occur”].)

(c) Demurrer to the first and second causes of action

The complaint, given a reasonable interpretation, shows that the first cause of action for wrongful termination in violation of public policy arises from the alleged sexual harassment described above, and a purported “wrongful termination” of Plaintiff based on the alleged harassment and discrimination of, and retaliation against, Plaintiff.(Complaint, ¶¶ 26-27.) The demurrer asserts that the complaint fails to state a cause of action for wrongful termination because it fails to identify, with particularity, the conduct which violates any public policy or the policy that was allegedly violated; fails to plead any facts showing that any protected activity was a substantial motivating reason for any adverse employment action; fails to show that Plaintiff was actually discharged; and shows only that Plaintiff voluntarily abandoned their employment.

“ [W]hile an at-will employee may be terminated for no reason, or for an arbitrary or irrational reason, there can be no right to terminate for an unlawful reason or a purpose that contravenes fundamental public policy. Any other conclusion would sanction lawlessness, which courts by their very nature are bound to oppose.’ [Citation.] [A]t-will employees may recover tort damages from their employers if they can show they were discharged in contravention of fundamental public policy.” (Casella v. SouthWest Dealer Services, Inc. (2007) 157 Cal.App.4th 1127, 1138–1139.)

The court assumes the truth of the allegations that the conduct of S Doe described in the complaint occurred throughout Plaintiff’s employment with Ramsey; that Plaintiff complained to JC about that conduct; that Plaintiff reported unsafe truck conditions to S Doe; and that in or around December 2023, S Doe told Plaintiff that they did not need to report to work. To the extent the first and third causes of action arise from the same conduct described above, the complaint is sufficient to allege a basis for a violation of public policy. (Bailey, *supra*, 16 Cal.5th at p. 626 [public policies of the FEHA are fundamental]; see

also Featherstone v. Southern California Permanente Medical Group (2017) 10 Cal.App.5th 1150, 1169–1170 [general discussion re same].)

Labor Code section 1102.5 also “ ‘reflects [a] broad public policy interest in encouraging workplace whistle-blowers to report unlawful acts without fearing retaliation.’ [Citation.]” (Brown v. City of Inglewood (2025) 18 Cal.5th 33, 53.) The allegations of the complaint described above are also sufficient to show, expressly and by inference, that Plaintiff disclosed the purported harassment “to a person with authority over [Plaintiff], and that Plaintiff had “reasonable cause to believe” that information regarding the purported harassment “discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation” (Lab. Code, § 1102.5, subd. (b).)

In addition, allegations showing that the conduct of S Doe continued throughout Plaintiff’s employment with Ramsey are sufficient to suggest some “proximity in time between the protected action and the allegedly retaliatory employment decision.” (McRae v. Department of Corrections & Rehabilitation (2006) 142 Cal.App.4th 377, 388.) The demurrer also does not address whether the allegations of the complaint are sufficient to show that the conduct at issue “effectively force[d] [Plaintiff] to resign. Although the employee may say, ‘I quit,’ the employment relationship is actually severed involuntarily by the employer’s acts, against the employee’s will. As a result, a constructive discharge is legally regarded as a firing rather than a resignation.” (Turner v. Anheuser-Busch, Inc. (1994) 7 Cal.4th 1238, 1244–1245.)

For all reasons discussed above, the court will overrule the demurrer to the first cause of action on the grounds stated.

The grounds for demurrer to the second cause of action for whistleblower retaliation under Labor Code sections 1102.5 and 98.6 are effectively the same or similar to the grounds for demurrer to the first cause of action further discussed above. Therefore, the same or similar reasoning and analysis apply. For the same reasons discussed above, the court will overrule the demurrer to the second cause of action on the grounds stated.

(d) Demurrer to the sixth and seventh causes of action

In the sixth cause of action for failure to furnish compliant wage statements, Plaintiff alleges that by failing to accurately report the total wages earned by Plaintiff, Ramsey failed to provide Plaintiff with timely and accurate wage statements under Labor Code section 226. The demurrer argues that the complaint is required but fails to identify which of the nine statutory items were deficient, the manner in which each statement failed to comply with statutory requirements, the time period at issue, or any injury Plaintiff suffered as a result of any deficiency.

Labor Code section 226 requires an employer to provide “an accurate itemized statement in writing showing ... gross wages earned” (Lab. Code, § 226, subd. (a).) The allegations described above suggest that the alleged underlying violation does not arise from any failure by Ramsey to furnish an accurate itemized statement showing the additional items listed in subdivision (a)(2) through (9) of section 226. (Doss v. Tesla, Inc. (2026) 121 Cal.App.5th 81, 97–98.)

The demurrer also fails to address the provisions of section 226 which provide that “[a]n employee is deemed to suffer injury for purposes of ... [subdivision] [(e)(2)(B)] if the employer fails to provide accurate and complete information as required by any one or more of items (1) to (9), inclusive, of subdivision (a)” (Lab. Code, § 226, subd. (e)(2)(B).) For these and all further reasons discussed above, the court will overrule the demurrer to the sixth cause of action on the grounds stated.

As to the seventh cause of action for failure to reimburse Plaintiff for expenditures made on Ramsey’s behalf pursuant to Labor Code section 2802, the demurrer advances the same or similar arguments in regard to whether the complaint is required or fails to plead facts showing that Ramsey required Plaintiff to use a personal cell phone for work, that Ramsey had knowledge of any work related cell phone use, that Plaintiff submitted a request for reimbursement, or that the request was denied.

The same or similar reasoning and analysis apply. For the same reasons discussed above, the allegations of the complaint are sufficient to show that Plaintiff “made expenditures or incurred losses” in connection with the use of Plaintiff’s cell phone to communicate with Plaintiff’s supervisors “in direct consequence of” Plaintiff’s “discharge of his or her duties”, and that those “expenditures or losses were necessary.” (Cassady v. Morgan, Lewis & Bockius LLP (2006) 145 Cal.App.4th 220, 230 [setting forth elements of a cause of action under Labor Code section 2802].) For these and all further reasons discussed above, the court will overrule the demurrer to the seventh cause of action on the grounds stated.

(e) Demurrer to the eighth cause of action

The eighth cause of action arises from the “unpaid wages and other monies owed to” and the “compensation unlawfully withheld” from Plaintiff. (Complaint, ¶¶ 74, 76.) The demurrer argues that cause of action is derivative of the underlying statutory violations alleged in the complaint which are inadequately pleaded; that Plaintiff lacks standing under the Unfair Competition Law or “UCL”; and that Plaintiff seeks remedies not available under the UCL.

Business and Professions Code section 17200 et seq. prohibits unfair competition. The term “unfair competition” is “broadly defined” in the UCL to include “any unlawful, unfair or fraudulent business act or practice.” (Gregory v. Albertson’s, Inc. (2002) 104 Cal.App.4th 845, 850-851; Bus. & Prof. Code, § 17200.) “A business practice constitutes unfair competition if it is forbidden by any law, ‘be it civil or criminal, federal, state, or municipal, statutory, regulatory, or court-made’ [citation] or if it is unfair, that is, if it ‘ ‘ ‘offends an established public policy or ... is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers.’ ” [Citation.]” (Id. at p. 854.) “A plaintiff alleging unfair business practices under these statutes must state with reasonable particularity the facts supporting the statutory elements of the violation.” (Khoury, supra, 14 Cal.App.4th at p. 619.)

The UCL applies to violations of the Labor Code such as those purported violations which ostensibly underlie the eighth cause of action for violation of the UCL. (See, e.g., Sullivan v. Oracle Corp. (2011) 51 Cal.4th 1191, 1206 [UCL applies to violation of overtime provisions of the Labor Code]; Hodge v. Superior Court (2006) 145 Cal.App.4th 278, 283 [“unlawful failure to pay wages ... can be the subject of a UCL claim”]; Steinhebel v. Los Angeles Times Communications, LLC (2005) 126 Cal.App.4th 696, 712 [“employer’s policy or practice that violates the Labor Code may also be held an ‘unlawful business practice’ under [the UCL]”].) Furthermore, “a demurrer cannot rightfully be sustained to ... a particular type of damage or remedy.” (Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1047.)

Because the demurrer fails, for all reasons discussed above, to show why the complaint does not state facts sufficient to constitute a cause of action under Labor Code sections 226, 1102.5, or 2802, the court will overrule the demurrer to the eighth cause of action for unfair competition on the grounds stated.

(f) Leave to amend

As the complaint is an original pleading which does not “show[] on its face that it is incapable of amendment” as to the fourth cause of action for failure to provide reasonable accommodations (King v. Mortimer (1948) 83 Cal.App.2d 153, 158), the court will grant Plaintiff leave to amend (Eghtesad v. State Farm General Ins. Co. (2020) 51 Cal.App.5th 406, 411).

(2) Motion to Strike

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof[.]” (Code Civ. Proc., § 435, subd. (b)(1).) Upon a motion to strike made under Code of Civil Procedure section 435, the court may “strike out any irrelevant, false, or improper matter inserted in any pleading” or “strike all or part of any pleading not filed in conformity with applicable law, court rules, or an order of the court.” (Code Civ. Proc., § 436(a) & (b).) The grounds for a motion to strike must appear on the face of the pleading or from matters which the court may take judicial notice. (Code Civ. Proc., § 437, subd. (a).)

The motion to strike asserts that the allegations of the complaint are conclusory; fail to show any malicious, oppressive, fraudulent, or despicable conduct by Ramsey in conscious disregard of Plaintiff's rights; and fail to show a basis for imposing punitive damages on a corporate employer such as Ramsey.

The complaint alleges that Ramsey is "a California corporation". (Complaint, ¶ 3.) Relevant here, Civil Code section 3294, subdivision (b), provides: "An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, § 3294, subd. (b).)

Wholly absent from the complaint are any facts sufficient to show the advance knowledge by Ramsey of any unfitness of S Doe or JC, or that Ramsey employed those individuals with a conscious disregard of Plaintiff's rights or safety. Though the complaint alleges that JC was Plaintiff's supervisor, the complaint includes no allegations showing that either JC or S Doe were officers, directors, or managing agents of Ramsey, or why any officer, director, or managing agent authorized or ratified any wrongful conduct of JC or S Doe. There are also no allegations sufficient to show any wrongful conduct on the part of any officer, director, or managing agent of Ramsey with respect to the purported harassment or other conduct alleged in the complaint.

For all reasons discussed above, the allegations of the complaint are insufficient to support an award of punitive damages against Ramsey notwithstanding whether the allegations are sufficient to show "oppression, fraud, or malice" under Civil Code section 3294 (and the court presently makes no findings in that regard). Therefore, the court will grant the motion to strike on this ground, with leave to amend.

The motion to strike punitive damages is directed to paragraphs 29, 38, 47, 59, and 66, and prayer paragraph (l), only. (Notice at p. 2, ¶¶ 1 & 2; Memorandum at p. 3, ¶ (1) & Section III(A); see also *Dietlin v. General American Life Ins. Co.* (1935) 4 Cal.2d 336, 346 ["A motion to strike must be directed with precision to the matter sought to be stricken."]). For these and all further reasons discussed above, the court will order that the demand for punitive damages contained in those paragraphs be stricken as to Ramsey only, and not as to any other defendant against which Plaintiff asserts a claim for punitive damages. As to the remaining allegations appearing in those paragraphs, they appear to be essential to claims or matters alleged in the complaint with respect to other defendants. Therefore, the court will deny the motion to strike as to those other claims and allegations. (*Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1281.)

The motion to strike further asserts that the UCL does not authorize the compensatory damages or nonrestitutionary disgorgement claimed in paragraphs 75, 76, and prayer paragraph (k). As the court will overrule the demurrer to the eighth cause of action for unfair competition under the UCL, and as that cause of action arises from a purported failure by Ramsey to accurately report and ostensibly pay wages earned by Plaintiff, the court will deny the motion to strike as to those paragraphs. (*Cortez v. Purolator Air Filtration Products Co.* (2000) 23 Cal.4th 163, 177–178 [general discussion, also noting that "a claim for wages owed is not a damage claim" and "backpay may be a form of restitution"].)

The same reasoning and analysis apply in regard to the request to strike prayer paragraphs (c) and (i). (See Lab. Code, § 1102.5, subd. (j) ["The court is authorized to award reasonable attorney's fees to a plaintiff who brings a successful action" under that section].)

The opposition of Plaintiff to the motion to strike appears to concede that the portion of prayer paragraph (a) seeking compensation for overtime and meal and rest periods, and waiting time penalties, should be stricken from the complaint. (See Opp. at pp. 708 [requesting leave to amend to add appropriate causes of action to conform that prayer].) Plaintiff also and expressly does not oppose an order striking the reference in prayer paragraph (d) to contractual or quasi-contractual causes of action, which Plaintiff asserts is a "drafting error." (Opp. at p. 8, ll. 26-28.) For these reasons, the court will grant the motion to strike as to those matters reflected in prayer paragraphs (a) and (d), with leave to amend.

As to prayer paragraphs (f) and (g) which demand, respectively, an accounting and a “declaration of the rights and interests of the parties” (complaint at p. 15, ¶ (g)), the complaint is, for all reasons discussed above, sufficient to show “an existing actual controversy” which entitles Plaintiff to declaratory relief with respect to the causes of action further discussed above. (C. Dudley De Velbiss Co. v. Krintz (1951) 101 Cal.App.2d 612, 615-616; see also Qualified Patients Assn. v. City of Anaheim (2010) 187 Cal.App.4th 734, 756.) In addition, to the extent the allegations are sufficient to state a “viable” claim of misconduct by Ramsey including in regard to the payment of wages as further discussed above, the conclusory arguments presented in the motion to strike fail to explain why the complaint is insufficient to support an equitable proceeding for an accounting. (Green Valley Landowners Assn. v. City of Vallejo (2015) 241 Cal.App.4th 425, 442-443 [general discussion].)

“In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) For these and all further reasons discussed above, the court will deny the motion to strike prayer paragraphs (f) and (g).

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US